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CASE #	CASE NAME	HEARING NAME
CVRI2602141	SHAWANDA R. OBEY, MD, MPH VS MAGELLA MEDICAL GROUP, INC.	MOTION TO QUASH SERVICE OF SUMMONS ON SPECIALLY APPEARING DEFENDANT HCA HEALTHCARE, INC. FOR LACK OF JURISDICTION BY HCA HEALTHCARE, INC.
CVRI2602141	SHAWANDA R. OBEY, MD, MPH VS MAGELLA MEDICAL GROUP, INC.	ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)
CVRI2602141	SHAWANDA R. OBEY, MD, MPH VS MAGELLA MEDICAL GROUP, INC.	DEMURRER

Tentative Ruling:

Motion to Quash Service of Summons

Moving party: Defendant HCA Healthcare, Inc.
Responding party: Plaintiff Shawanda R. Obey, MD, MPH

Motion filed: 6/25/26
Opposition filed: 8/31/26
Reply filed: 9/4/26

Special Motion to Strike

Moving party: Defendant Pomona Valley Hospital Medical Center
Responding party: Plaintiff Shawanda R. Obey, MD, MPH

Motion filed: 7/7/26
Opposition filed: 8/31/26
Reply filed: 9/9/26

Demurrer to Complaint

Moving party: Defendant San Antonio Regional Hospital
Responding party: Plaintiff Shawanda R. Obey, MD, MPH

Motion filed: 7/7/26
Opposition filed: 8/31/26
Reply filed: 9/4/26

Plaintiff Shawanda R. Obey, M.D. ("Plaintiff") is an obstetrician-gynecologist ("OB/GYN"). She joined the medical staff at Riverside Health System, L.P. dba Riverside Community Hospital ("RCH") in 2002 and was employed by Pediatrix Medical

Group, Inc. ("Pediatrix"). She contends that after she joined RCH, she received a telephone call about lawsuits she had filed against other hospitals and medical groups and was told that there were concerns about her being at RCH because of these lawsuits. Shortly after she started work, she complained about a toxic hospital culture. She contends that false and discriminatory statements that were harmful to her career were made while she was at RCH. She reported unsafe practices and conditions at RCH and was retaliated against while working at RCH. She was allegedly fired by Pediatrix and opened her own practice, while still retaining privileges at RCH and two other hospitals.

She contends that when her privileges were up for renewal at Pomona Valley Hospital Medical Center ("PVHMC"), it wanted information from RCH. RCH refused to provide this information without Plaintiff executing an "Authorization for Release of Information." Plaintiff contends that she refused to sign this document because it was more than a standard credential release. Due to this, her credentials were not renewed at PVHMC. She contends that her credentials were wrongfully suspended by San Antonio Regional Hospital ("SARH"). She informed RCH of this information. However, RCH did nothing with this information until Plaintiff's credentials were up for renewal. During renewal, it asked for information from SARH and Plaintiff needed to execute a "special release" from SARH to provide the necessary information for RCH to complete the credential process. Plaintiff refused to execute this form because she disagreed with the scope of the waiver. Due to this, RCH only extended her hospital credentials for a few months and she asserts this limited extension was improper.

On April 14, 2026, Plaintiff filed this action asserting the following causes of action: (1) whistleblower retaliation, (2) wrongful termination in violation of public policy, (3) intentional interference with prospective economic advantage, (4) negligent interference with prospective economic advantage, (5) civil conspiracy, (6) denial of fair procedure, (7) unfair competition, (8) breach of implied covenant of good faith and fair dealing, (9) wage and hour violations, and (10) intentional infliction of emotional distress.

On 8/17/26, a Special Motion to Strike brought by SARH was heard by the court. The Court granted the motion as to the first, third, fourth, fifth, sixth, seventh, and tenth causes of action.

Demurrer:

SARH now brings this demurrer. While the moving papers address the third, fourth, and sixth causes of action, a notice of partial withdrawal has been filed as to the demurrer, which limits the motion to only the fourth cause of action. SARH contends the fourth cause of action fails to state facts sufficient to constitute a cause of action because no economic relationship has been alleged. It asserts that a physician has no economic interest in prospective future clients.

In opposition, Plaintiff contends that this matter must be stayed because of the Court's ruling on the special motion to strike. She asserts that the fourth cause of action has been sufficiently alleged.

In reply, SARH reasserts the arguments set forth in the moving papers. It attempts to raise new arguments for the first time in reply.

Special Motion to Strike:

Pomona Valley Hospital Medical Center ("PVHMC") brings the anti-SLAPP motion. It argues that the first, second, third, fourth, fifth, sixth, seventh and tenth causes of action should be stricken. PVHMC argues that the first prong of the anti-SLAPP statute has been met because the allegations against PVHMC arise directly for PVHMC's conduct in allegedly making improper demands regarding her application for credentials. It argues that communications by medical staff in connection with processing a physician's application for medical staff membership falls within CCP § 425.16(e)(2) and (4). PVHMC contends that Plaintiff cannot meet the second prong of the anti-SLAPP lawsuit.

In opposition, Plaintiff argues that the first prong has not been met because the conduct at issue is not speech. She asserts that she has evidence to meet the second prong of the anti-SLAPP statute.

In reply, PVHMC reasserts the arguments set forth in the moving papers.

Motion to Quash Service of Summons:

HCA Healthcare, Inc. ("HCA") brings this motion. It contends that the Court lacks personal jurisdiction over it because it has no contacts with California that are sufficient to support general or specific personal jurisdiction. It also asserts that the summons and complaint were not properly served because its designated agent for service of process or officer or general manager were not served.

In opposition, Plaintiff does not dispute that HCA was not properly served with the summons and complaint. She does argue that there is sufficient evidence to support a request to allow Plaintiff the opportunity to conduct discovery to obtain additional evidence regarding the personal jurisdiction issue.

In reply, HCA reasserts the arguments set forth in the moving papers and contends that Plaintiff lacks a sufficient basis to allow her to conduct discovery regarding the issue of jurisdiction. It also argues that the discovery that Plaintiff requests to do is overly broad.

Analysis:

Demurrer: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been

properly pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

SARH has filed a Notice of Partial Withdrawal of Demurrer, limiting this motion to only the fourth cause of action for negligent interference with prospective economic advantage.

Based on the Court's 8/17/26 Order for SARH's special motion to strike, the motion was granted as to the first, third, fourth, fifth, sixth, seventh, and tenth causes of action. **Accordingly, the demurrer is moot due to the Court's 8/17/26 ruling.**

The Court ruled:

Prong One: Plaintiff alleges negligent interference through failure to follow fair procedures, including §809.2(d) discovery withholding, the restriction, and continuation. The noncommunicative restrictions and alleged § 809.2(d) omissions do not arise from protected activity. Any peer-review statements or § 805/NPDB reports supplied to third parties as causation are protected. Prong One is carried as to those protected slices.

Prong Two. Plaintiff cannot establish minimal merit. Negligent interference requires breach of an independent duty beyond the interference itself. SARH owed no duty to plaintiff to facilitate her RCH credentialing or to respond on plaintiffs preferred timeline. **The claim is barred by litigation privilege for the same reasons.**

Therefore, the demurrer should not proceed.

Additionally, this motion falls within the stay under CCP § 916 due to the appeal to SARH's special motion to strike. Under CCP § 916(a), "the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." "The purpose of the automatic stay provision of section 916, subdivision (a) 'is to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. The [automatic stay] ' prevents the court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it.'" (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189.) A proceeding in the trial court "affects the effectiveness of an appeal if the possible outcomes on appeal and the actual or possible results of the proceeding are irreconcilable." (*Id.* at 190.) A demurrer could potentially result in the sustaining of the fourth cause of action without leave to amend. This would affect the effectiveness of the appeal and render it futile. As such, the demurrer appears to fall within the stay under CCP § 916(a).

Special Motion to Strike:

Anti-SLAPP Standard

“The Legislature enacted...anti-SLAPP statute [strategic lawsuit against public participation]...to provide a procedural remedy to dispose of lawsuits that are brought to chill the valid exercise of constitutional rights. [Citation.]” (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1055.) C.C.P. § 425.16 provides a two-Prong test in determining whether a cause of action constitutes a SLAPP. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88; C.C.P., § 425.16(b)(1).) The moving party bears the initial burden of showing that the action falls within the class of suits subject to the special motion to strike. (*Wilcox v. Sup. Ct.* (1994) 17 Cal.App.4th 809, 819.) “In the anti-SLAPP context, the critical point is whether the plaintiff’s cause of action itself was based on an act in furtherance of the defendant’s right of petition or free speech.” (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78.) Once the defendant makes such a prima facie showing, the burden shifts to the plaintiff to establish a “probability” that it will prevail on whatever claims are asserted against the moving defendant. (C.C.P., § 425.16(b).) The plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment. (*Navellier, supra*, 29 Cal.4th at 89, 93.)

Litigation of an anti-SLAPP motion involves a two-Prong process. (*Bonni v. St. Joseph Health Sys.* (2021) 11 Cal.5th 995, 1009.) First, “the moving defendant bears the burden of establishing that the challenged allegations or claims ‘aris[e] from’ protected activity in which the defendant has engaged.” (*Id.*) Second, for each claim that does arise from protected activity, the plaintiff must show the claim has “at least minimal merit.” (*Id.*) If the plaintiff cannot make this showing, the court will strike the claim. (*Id.*)

“At this first Prong, courts are to “consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. [citation.] The defendant’s burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity. [citation.]” (*Id.*) The anti-SLAPP statute identifies four categories of protected activity. (§ 425.16, subd. (e)(1)–(4).) Here, PVHMC invokes two of them. Section 425.16, subdivision (e)(2) protects “any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.” Subdivision (e)(4) covers “any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.”

When a claim is based on both protected and unprotected activity, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. (*Baral v. Schnitt* (2016) 1 Cal. 5th 376, 382.). When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. (*Id.* at 396.) If the court determines that

relief is sought based on allegations arising from activity protected by the statute, the second Prong is reached. (*Ibid.*)

At the second Prong, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. (*Id.*) The court, without resolving evidentiary conflicts, must determine whether the plaintiff's showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. (*Id.*) If not, the claim is stricken. (*Id.*)

Merits

Medical peer review proceedings constitute official proceeding[s] authorized by law within the meaning C.C.P., § 425.16(e)(2). (*Kibler v. Northern Inyo County Local Hospital Dist.* (2006) 39 Cal.4th 192, 199.) Hospital peer review proceedings constitute official proceedings authorized by law within the meaning of section 425.16, subdivision (e)(2) because a hospital must report to the Medical Board of California (Medical Board), which licenses physicians, any hospital action that restricts or revokes a physician's staff privileges as a result of a determination by a peer review body. (*Id.* at 200.) Communications made in connection with such proceedings are protected and may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a Prong leading to some different act for which liability is asserted. (*Bonni v. St. Joseph Health Sys.* (2021) 11 Cal.5th 995 (2021) [distinguished between protected peer review communications, including statements during proceedings and mandatory reports to licensing bodies, and unprotected final discipline decisions imposed after exhausted review], citing to *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060.)

First Cause of Action – Whistleblower Retaliation (§ 1278.5 / § 1102.5):

Health and Safety Code section 1278.5 forbids health facilities from discriminating or retaliating against certain individuals, including medical staff members, for presenting complaints concerning the quality of patient care to other members of the medical staff, the facility, or other responsible entities. (Health & Saf. Code, § 1278.5, subd. (b)(1).) A claim under this statute requires proof of discriminatory treatment, which may be shown by “any unfavorable changes in” a medical staff member's “contract, employment, or privileges ... or the threat of” such changes. (*Id.*, subd. (d)(2).)

This motion is very similar to the motion brought by SARH, but the conduct specifically alleged against PVHMC is more limited. The specific allegations asserted against PVHMC in the complaint are that: 1) PVHMC required documents be released from RCH regarding peer review matters, as part of her admitting privileges application; 2) RCH allegedly required an improper waiver to be signed for said documents to be released; and 3) Plaintiff's privileges terminated on January 7, 2025, because she would not sign the release. (Complaint, ¶¶ 278-293.)

The first cause of action fails to allege specific allegations against PVHMC. It does contain generic allegations collectively asserted against all of the defendants. These generic allegations assert that defendants retaliated against Plaintiff by

interfering with her privileges, imposing improper credential requirements, initiated investigations, asserted unsubstantiated allegations without evidence, pressured Plaintiff to resign, removed her from scheduled clinical work, failed to reassign her, and obstructed her ability to secure alternative employment. (Complaint, ¶¶ 518, 520, and 521.)

Prong One: The specific allegations regarding PVHMC do not appear to fall within the first prong of the anti-SLAPP statute. They are not based on communications or conduct in the furtherance of the right of petition or constitutional right of free speech. PVHMC is alleged to have required Plaintiff to release documents in RCH's possession as part of her admissions application. This challenged conduct is not speech but procedural requirements in an administrative process. "Failing to distinguish between the challenged decisions [of an administrator] and the speech that leads to them or thereafter expresses them 'would chill the resort to legitimate judicial oversight over potential abuses of legislative and administrative powers.'" (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1067, citing *San Ramon Valley Fire Protection Dist.*, *supra*, 125 Cal.App.4th at 358.) The anti-SLAPP statute focuses on whether the defendant's activity that gives rise to their asserted liability constitutes protected speech or petitioning. (*Park*, *supra*, 2 Cal.5th at 1064.) While liability based on statements made during and in connection with peer review proceedings and disciplinary reports filed with official bodies qualify under the first prong of the anti-SLAPP statute, not all parts of a peer review proceeding does. (*Bonni*, *supra*, 11 Cal.5th at 1004.) PVHMC's specific conduct does not pertain to speech or petitioning activities and therefore does not fall within the first prong.

Some of the generic allegations appear to constitute speech and fall within the first prong. Specifically, allegations regarding false or misleading narratives and unsubstantiated allegations to the extent that they pertain to the peer review process. The peer review process constitutes an "other official proceeding authorized by law" under CCP § 425.16 and these allegations pertain to communications. (*Kibler v. Northern Inyo County Local Hospital Dist.* (2006) 39 Cal.4th 192, 199.) "[C]laims of retaliation based on statements in connection with peer review proceedings arises from protected activity." (*Bonni*, *supra*, 11 Cal.5th at 1018.)

As such, the first prong is met only to the generic allegations in paragraph 520 of the Complaint regarding false or misleading narratives and unsubstantiated allegations to the extent that they pertain to the peer review process.

Prong Two: Civil Code section 47(b) provides absolute immunity for any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law. The litigation privilege bars tort claims based on peer review communications even when allegedly motivated by retaliation. It also applies to a failure to communicate information. (*Dignity Health v. Mounts* (2024) 105 Cal.App.5th 113, 122.) Civil Code § 47(b) appears applicable to the allegations identified in paragraph 520 of the Complaint to the extent they apply to peer review.

In addition to Civil Code § 47(b), PVHMC also argues that it cannot be liable under Labor Code § 1102.5, because it is not Plaintiff's employer. Labor Code § 1102.5 applies to an employer or person acting on behalf of the employer. Plaintiff does not allege that PVHMC is her employer. She provides no evidence to establish that PVHMC is her employer. **As such, any claim under this statute fails. Plaintiff cannot establish a probability of prevailing on a claim under Labor Code 1102.5.**

PVHMC also asserts that the applicable statute of limitation for a claim under Health and Safety Code section 1278.5 is one year, which bars Plaintiff's claims. In *Melamed v. Cedars-Sinai Medical Center* (2017) 8 Cal.App.5th 1271, 1287, the Court stated that a one-year statute of limitations applies to claims brought under Labor Code § 1278.5. While this appears to be dicta, the reasoning set forth in *Melamed* appears persuasive and no other published case has discussed the applicable statute of limitations. Plaintiff alleges that her privileges in connection with PVHMC were terminated on January 7, 2025. (Complaint, ¶ 293.) Plaintiff's complaint was not filed until April 14, 2026. As such, this claim appears to be barred by the applicable statute of limitations. Due to this, the motion is granted to strike only paragraph 520 in the first cause of action as discussed above, to the extent it applies to the peer review process.

Second Cause of Action – Wrongful Termination:

This cause of action is not asserted against PVHMC. PVHMC is not alleged to be Plaintiff's employer. As such, the motion is denied as to this cause of action.

Third Cause of Action – Intentional Interference with Prospective Economic Advantage:

The elements of intentional interference with prospective economic advantage are: (1) economic relationship between plaintiff and third party with the probability of future economic benefit to the plaintiff; (2) defendant's knowledge of the relationship; (3) defendant's intentional acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff. (See *Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 212, 241.) Further, to establish intentional interference with prospective economic advantage, a plaintiff must plead and prove that the defendant's interference was wrongful by some legal measure other than the fact of interference itself (i.e., that the defendant engage in independently wrongful act beyond disruption of the economic relationship). (*Ibid.*)

Prong One. The specific allegations in the complaint regarding PVHMC are that it required her to release documents from RCH, which RHC would not release without her signing an excessive release. PVHMC refused to process Plaintiff's admitting application without said documents, which resulted in her privileges being terminated at PVHMC. As discussed above, this conduct does not appear to fall within the first prong of the anti-SLAPP statute.

This cause of action does contain generic allegations collectively asserted against the defendants. These allegations include assertions that defendants improperly communicated across institutions to interfere with Plaintiff's practice. (Complaint, ¶ 581.)

To the extent that this conduct pertains to the peer review process, as discussed above, such communications would fall within the first prong of the anti-SLAPP statute.

Prong Two. Plaintiff cannot establish wrongful interference. PVHMC's conditioning of disclosure on a statutory release form authorized by section 809.08(d) was lawful conduct. Plaintiff's refusal to provide the requested authorization broke any causal chain. Plaintiff alleges no false or misleading statements by PVHMC. Mere delay in responding, standing alone, does not constitute intentional interference. The claim is additionally barred by litigation privilege and common interest privilege (Civil Code § 47(c)) to the extent it pertains to communications between peer review bodies sharing information pursuant to statutory authorization. The Court grants the motion and strikes only the allegations in paragraph 581 regarding communications across institutions.

Fourth Cause of Action – Negligent Interference with Prospective Economic Advantage:

“The tort of negligent interference with prospective economic advantage is established where a plaintiff demonstrates that (1) an economic relationship existed between the plaintiff and a third party which contained a reasonably probable future economic benefit or advantage to plaintiff; (2) the defendant knew of the existence of the relationship and was aware or should have been aware that if it did not act with due care its actions would interfere with this relationship and cause plaintiff to lose in whole or in part the probable future economic benefit or advantage of the relationship; (3) the defendant was negligent; and (4) such negligence caused damage to plaintiff in that the relationship was actually interfered with or disrupted and plaintiff lost in whole or in part the economic benefits or advantage reasonably expected from the relationship.” (*Venhaus v. Shultz* (2007) 155 Cal.App.4th 1072, 1078.)

Prong One. As discussed above, the specific allegations regarding PVHMC do not fall within the first prong of the anti-SLAPP statute. This cause of action does assert generic allegations collectively asserted against the defendants. This cause of action is brought in part on incomplete, unsupported, unverified and unsubstantiated information allegedly relied on by defendants. (Complaint, ¶ 602.) To the extent that this pertains to statements made in the peer-review process, this conduct in paragraph 602 meets the first prong of the anti-SLAPP statute.

Prong Two: Plaintiff cannot establish minimal merit. Negligent interference requires breach of an independent duty beyond the interference itself. PVHMC owed no duty to plaintiff to facilitate her credentialing in her preferred manner or to respond on plaintiff's preferred timeline. The claim is barred by litigation privilege as to the portion of the claim based on peer review. As such, to the extent that paragraph 602 pertains to the peer review process, the allegations regarding incomplete, unsupported, unverified, and unsubstantiated information, the motion is granted in part and only the allegation in paragraph 602 of the Complaint are stricken.

Fifth Cause of Action – Civil Conspiracy:

“The elements of an action for civil conspiracy are (1) formation and operation of the conspiracy, and (2) damage to plaintiff resulting from an act or acts done in furtherance of the common design.” (*Klistoff v. Superior Court* (2007) 157 Cal.App.4th 469, 479.) “Civil conspiracy is not an independent tort.” (*Favila v. Katten Muchin Rosenman LLP* (2010) 188 Cal.App.4th 189, 206.)

Prong One. As discussed above, the specific allegations asserted against PVHMC do not fall within the first prong of the anti-SLAPP statute. The generic allegations in the fifth cause of action contain allegations collectively asserted against the defendants. Included are allegations that defendants improperly shared peer review information. (Complaint, ¶ 626.) As discussed above, this conduct appears to fit within the first prong.

Prong Two. This is not a proper cause of action. Plaintiff cannot pursue an independent cause of action for conspiracy. As such, the motion is granted as to the allegations discussed above in paragraph 626 of the Complaint only and they are stricken.

Sixth Cause of Action – Denial of Fair Procedure

“Denial of Fair Procedure” claim is no longer a recognized cause of action under California law. (*Asiryan v. Glendale Adventist Medical Center* (2024) 100 Cal.App.5th 947, 966-969.) This cause of action contains specific allegations as to PVHMC. It alleges that PVHMC denied Plaintiff a fair procedure by imposing non-neutral and arbitrary requirements regarding its credentialing process and demanded the disclosure of confidential legal materials from prior litigation. (Complaint, 669.) It is alleged that it required an overly broad waiver during the credentialing process. (*Id.* at 670.) It asserts that PVHMC used procedural mechanisms to avoid due process protections. (*Id.* at 672.)

Prong One. While denial of fair procedure is not a proper cause of action, the allegations regarding PVHMC do not meet the first prong. Plaintiff is challenging validity of PVHMC’s procedural requirements for obtaining her credentials. She is not challenging speech. “To determine the applicability of . . . the anti-SLAPP statute, [courts] look to the gravamen of the instant action. . . . [T]he gravamen of an action is the allegedly wrongful and injury-producing conduct, not the damage which flows from said conduct.” (*Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 387.) Put slightly differently, “[t]he [anti-SLAPP] statute’s definitional focus is . . . [whether] the defendant’s activity giving rise to his or her asserted liability . . . constitutes protected speech or petitioning. [Citation.]” (*San Ramon Valley Fire Protection Dist. v. Contra Costa County Employees’ Retirement Assn.* (2004) 125 Cal.App.4th 343, 354 (citations omitted).) The conduct at issue does not constitute protected speech or petitioning activity. Due to this, the first prong has not been met, and the motion is denied as to this cause of action.

Seventh Cause of Action – Unfair Competition Law (Bus. & Prof. Code § 17200):

Business & Professions Code § 17200 prohibits any business act or practice that is unlawful, unfair, or fraudulent. A cause of action for violating this statute “borrows” actionable conduct and makes it independently actionable under the unfair competition law. (*Smith v. State Farm* (2001) 93 Cal.App.4th 700, 718.)

Prong One. As discussed above, the specific allegations in the Complaint regarding PVHMC do not fall within the first prong of the anti-SLAPP statute. While this cause of action does contain generic allegations asserted collectively against all the defendants, none of the conduct appears to fit within the first prong. There are no allegations that appear to be based on the peer review process. As such, the first prong has not been met as to this cause of action, and the motion is denied as to this claim.

Tenth Cause of Action – Intentional Infliction of Emotional Distress:

“A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. A defendant's conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. And the defendant's conduct must be intended to inflict injury or engaged in with the realization that injury will result. Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-51.)

Prong One. As discussed above, the specific allegations regarding PVHMC do not meet the first prong of the anti-SLAPP statute. The tenth cause of action does contain generic allegations collectively asserted against all the defendants. These allegations include assertions that defendants subjected Plaintiff to unsubstantiated and damaging allegations without evidentiary support and relied upon false or misleading narratives when investigating claims affecting Plaintiff's professional standing. (Complaint, 767.) To the extent that this conduct pertains to the peer review process, it appears that the first prong has been met as to these allegations in paragraph 767 of the complaint.

Prong Two: Plaintiff provides no evidence that establishes that she sustained severe or extreme emotional distress. This issue is not addressed by her in opposition. As such, she has failed to meet her burden. Additionally, the conduct at issue does not appear to be extreme or outrageous. As such, to the extent the allegations in paragraph 767 of the Complaint asserting that defendants subjected Plaintiff to unsubstantiated and damaging allegations without evidentiary support and relied upon false or misleading narratives when investigating claims affecting Plaintiff's professional standing pertain to the peer review process, the motion is granted as these allegations only.

Motion to Quash Service of Summons:

CCP §418.10(a) provides that a defendant may move to quash service of summons on the following grounds: (1) lack of jurisdiction; (2) inconvenient forum; or (3) dismissal due to delay in prosecution. “[W]hen jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that ‘minimum contacts’ exists between defendant and the forum state to justify imposition of personal jurisdiction.” (*Mihlon v. Superior Court* (1985) 169 Cal.App.3d 703, 710.) The plaintiff must show by the preponderance of the evidence that “all jurisdictional criteria are met.” (*Ziller Electronic Lab GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1232-1233.) This burden must be met with competent evidence in affidavits and authenticated documentary evidence. (*Jewish Defense Org. v. Superior Court* (1999) 72 Cal.App.4th 1045, 1055.)

The focus of personal jurisdiction is whether the defendant established minimum contact with the forum state. (*Rivelli v. Hemm* (2021) 67 Cal.App.5th 380, 391.) “Personal jurisdiction under the minimum contacts framework may be either all-purpose (also called “general”) or case linked (also called “specific”).” (*Id.* at 392.) General jurisdiction for all purposes may lie if a defendant has a presence in the forum state due to extensive or wide-ranging activities, or substantial and systematic activities, in which case a defendant’s contacts take the place of physical presence within the state. (*Integral Dev’t Corp. v. Weissenbach* (2002) 99 Cal. App. 4th 576, 583-84.) When general personal jurisdiction applies, a cause of action does not need to be related to the defendant’s contacts. (*Thomson v. Anderson* (2003) 113 Cal.App.4th 258, 265-266.)

For a corporation, the test for general jurisdiction is generally the place of incorporation and principal place of doing business. (*Daimler AG v. Bauman* (2014) 571 U.S. 117, 138.) General jurisdiction “calls for an appraisal of a corporation’s activities in their entirety, nationwide and worldwide. A corporation that operates in many places can scarcely be deemed at home in all of them. Otherwise, ‘at home’ would be synonymous with ‘doing business’ tests framed before specific jurisdiction evolved in the United States.” (*Id.* at 139 n. 20.)

Specific jurisdiction occurs when the defendant’s contacts with the forum state are sufficient to subject the defendant to suit in the forum on a cause of action related to or arising out of those contacts. (*Aquila, Inc. v. Superior Court* (2007) 148 Cal.App.4th 556, 569-570.) It requires: (1) defendant to have purposefully availed itself of forum benefits with respect to the matter in controversy; (2) the controversy relates to or arises out of the defendant’s contacts with the forum; and (3) the assertion of jurisdiction would comport with fair play and substantial justice. (*Id.* at 570.) Courts must additionally evaluate the burden on the defendant of appearing in the forum, the forum state’s interest in adjudicating the claim, the plaintiff’s interest in convenient and effective relief within the forum, judicial economy, and the shared interest of the several states in furthering fundamental substantive social policies. (*Id.*) The purposeful availment prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect to be subject to the court’s jurisdiction. (*Shisler v. Sanfer Sports Cars, Inc.* (2006) 146 Cal.App.4th 1254, 1260.) “In order for a state court to exercise specific jurisdiction, ‘the suit’ must ‘aris[e] out of or relat[e] to the

defendant's contacts with the forum.” (*Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County* (2017) 582 U.S. 255, 262.)

“When the nonresident defendant is a parent corporation of a subsidiary which does business in California, the minimum contacts may be direct between the parent and the state, or imputed to the parent via its subsidiary. General jurisdiction over a local subsidiary extends to the foreign parent under an alter ego theory, general principles of agency, or under the representative services doctrine, a narrow species of agency.” (*BBA Aviation PLC v. Superior Court* (2010) 190 Cal.App.4th 421, 42.) “To invoke alter ego, two conditions must be met: 1) there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist; and 2) there must be an inequitable result if the acts in question are treated as those of the corporation alone.” (*F. Hoffman-La Roche, Ltd. v. Superior Court* (2005) 130 Cal.App.4th 782, 796.)

“The exercise of general jurisdiction through agency requires an analysis distinct from that of alter ego, though some of the factors are similar.” (*Id.* at 797.) For agency, the plaintiff must establish by evidence that the entity from whom the work was performed had the right to control the activities of the alleged agent. (*Ibid.*) “But for the purposes of jurisdiction, the analysis begins with the ‘firm proposition that neither ownership nor control of a subsidiary corporation by a foreign parent corporation, without more, subjects the parent to the jurisdiction of the state where the subsidiary does business.’” (*F. Hoffman-La Roche, Ltd., supra*, 130 Cal.App.4th at 787-798.) For jurisdiction based on agency, the foreign company must exercise control that is greater than the control found in a typical parent-subsidiary relationship. (*Id.*) A relationship between a parent and subsidiary typically has a close financial connection and a certain degree of direction and management. (*Id.*) “It must veer into management by the exercise of control over the internal affairs of the subsidiary and the determination of how the company will be operated on a day-to-day basis. It is the ‘rare occasion’ where a court is willing to treat a parent and subsidiary as one entity for jurisdictional purposes.” (*Id.*)

“The representative services doctrine is a variation of agency, but does not depend on whether the parent enjoys pervasive and continuous control over the subsidiary as to establish a general agency relationship.” (*BBA Aviation PLC, supra*, 190 Cal.App.4th at 430.) General jurisdiction occurs under this doctrine when the existence of the subsidiary exists only to further the business of the parent, and but for the subsidiary’s existence, the parent would be performing those functions itself. (*Id.*) This doctrine does not apply where the parent is a holding company whose only business pursuit is the investment in the subsidiary. (*Id.*)

The evidence provided by Plaintiff is not sufficient to meet any of these doctrines. Plaintiff has provided emails from RCH that have HCA Healthcare logos and individuals employed by RCH have email addresses that end in “hcahealthcare.com.” She provides documents from an entity called Parallon Credentialing Processing Center that indicates that it provides credentialing services for “HCA affiliated hospitals.” Use of a common logo or the grouping of companies together (like referring to them as HCA affiliated

hospitals) is not sufficient to show jurisdiction over a parent company based on the location of its subsidiary. (*BBA Aviation PLC, supra*, 190 Cal.App.4th at 431-432.) Plaintiff does ask for the opportunity to do discovery to determine if jurisdiction exists. “A trial court has the discretion to continue the hearing on a motion to quash service of summons for lack of personal jurisdiction to allow the plaintiff to conduct discovery on jurisdictional issues.” (*HealthMarkets, Inc. v. Superior Court* (2009) 171 Cal.App.4th 1160, 1173.) The requirements needed to show jurisdiction over a parent based on the location of a subsidiary cannot be easily met without discovery. Due to this, the Court grants Plaintiff’s request and continues the motion to allow Plaintiff to do **limited** discovery regarding the issue of jurisdiction only.

The Court notes that Plaintiff appears to concede that the actual service of the summons and complaint on HCA Healthcare was improper. As such, it does appear that this motion should ultimately be granted in part. However, the issue of whether it should be quashed due to lack of personal jurisdiction should not yet be resolved until after Plaintiff has had the opportunity to do some discovery.

The motion to Quash will be continued to 11/9/2026 at 8:30 a.m. in Dept. 6. Plaintiff is ordered to file any supplemental opposition 9 court days before the 11/9/2026 hearing. Any supplemental reply brief is due 5 court days before the 11/9/2026 hearing.

Summary:

The demurrer is moot and stayed pending the appeal on SARH’s anti-SLAPP motion.

Grant the motion to strike in part and strike only the language discussed above found in paragraphs 520, 581, 602, 626, and 767. The remainder of the motion is denied.

Continue the motion to quash service of summons to allow Plaintiff to do limited additional discovery on the issue of jurisdiction with briefing schedule.